

timeliness of a petition to intervene is determined by the totality of the circumstances facing the intervenor, focusing on three factors: (1) the stage of proceedings; (2) the prejudice to other parties from the delay in seeking to intervene; and (3) the reason for delay. (*Crestwood Behavioral Health, Inc. v. Lacy* (2021) 70 Cal.App.5th 560, 574). “Prejudice to the existing parties” caused by delay is the most import factor. (*Ibid.*). The Court finds that the motion to intervene is timely in light of the totality of circumstances.

Plaintiff Mungaray and Mr. Eskanos argument that this court lacks jurisdiction pending appeal under section 916(a), is rejected. In his supplemental opposition, Plaintiff Mungaray also argues that this court should await the appellate court decision rather than alter party alignment. (Supplemental Opposition by Mungaray, p. 6). However, the court rejects that assertion. On June 23, 2026, the Sixth Appellate District Order directed this Court to hear the issue of intervention in this matter.

The court finds that Wells Fargo demonstrates an interest relating to the Subject Property based on its recorded beneficiary status in the Deen of Trust. Wells Fargo’s motion was preceded by an ex parte application that was denied pending stay on appeal, which the Sixth District ordered hearing. Weighing the totality of circumstances and the plaintiff’s assertion of prejudice that he will have to incur expenses and delay a resolution, the court notes that the underlying basis for the appeal is the order vacating the judgment. Accordingly, Wells Fargo is entitled to mandatory intervention pursuant to section 387. Wells Fargo seeks “. . . intervention claims an interest relating to the property or transaction that is the subject of the action and it is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.” (Code of Civ. Proc., §387(d)(1)(B)). “[T]he trial court has discretion to permit a nonparty to intervene where the following factors are met: (1) the proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action.” (*Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 386).

The court also notes that Wells Fargo has attached as Exhibit A to its motion to intervene, a copy of the proposed Answer in Intervention.

IV. CONCLUSION

Based on the foregoing, the motion to file an Answer in Intervention is GRANTED.

Wells Fargo is ordered to file its proposed Complaint-in-Intervention within ten (10) days of the date of this Order. The Court will prepare the formal Order.

Calendar Line # 2
Case Name Bernardo Magana Loya et al vs General Motors LLC
Case No. 23CV411778
Motion for Attorney’s Fees and Cost
I. <u>BACKGROUND</u>
This case stems from a Complaint under the Song-Beverly Act that was filed on February 15, 2023. The parties filed a notice of settlement on June 24, 2025.
Before the court is Plaintiff’s motion for attorney’s fees, costs and enhancer based on a resolution of claim arising out of Plaintiff’s 2019 Chevrolet Silverado 1500, vehicle identification number 3GCUYBEF9KG700309 (“Subject Vehicle”), which was brought under the Song-Beverly Consumer Warranty Act. (Complaint, p. 2). Plaintiffs

asserts it is the prevailing party upon resolution of the case and attorney's fees, costs, and expenses. (*Id.*). Plaintiff asserts that on March 31, 2025, parties agreed that the plaintiff would be deemed the prevailing party for purposes of this motion as part of its settlement agreement. (Plaintiff's Motion, p. 7, foot note 1). The principal settlement amount included \$77,000.00 plus prejudgment interest, totaling \$93,370.31. (Declaration of Wood). Plaintiff seeks an award totaling \$58,879.75, including: \$36,586.50 incurred in attorney fees, plus a 1.5 time multiplier for a total of \$54,879.75; and an additional \$4,000.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply brief, and attend the hearing on this Motion (Plaintiff's Motion, at p. 2 and 7).

Defendant General Motor LLC ("GM") opposes the motion on the grounds that the plaintiff's motion is untimely, the attorney's fees requested is unreasonable and fails to meet its burden for establishing a basis for a fee enhancement, and that the multiplier is unreasonable given the unremarkable standard breach-of-warranty lemon law case. (Opposition, p. 5-6). Defendant GM requests that the plaintiff's motion be denied as untimely, or in the alternative, be reduced to \$18,983.30, which would constitute a reasonable amount. (*Id.*, at p. 6).

The Court has carefully reviewed the following: Plaintiff's notice of motion and memorandum of points and authorities (totaling 19 pages), Declaration of Carey Wood and attached Exhibits 1-7 (totaling 198 pages); Defendant's opposition (total 18 pages); Declaration of Natalie Keshishian and attached Exhibits A-R (totaling 908 pages); Reply brief (totaling 11 pages); and supporting Declaration of Wod (totaling 8 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also*, Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794(d)). Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794).

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Ibid.*).

B. CALCULATION FOR FEES

In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*). "The courts repeatedly have

stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]).

III. ANALYSIS

Plaintiff seeks attorney’s fees, cost, and an enhancer in total amount \$58,879.75, including: \$36,586.50 incurred in attorney fees for 94.80 hours spent in litigating the case; plus a 1.5 time multiplier for a total of \$54,879.75; and an additional \$4,000.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply brief, and attend the hearing on this Motion (*Id.*, at p. 2-7, and 15). Plaintiff served initial discovery on the defendant on April 24, 2023. (*Id.*, at p. 9). Plaintiff asserts that the defendant’s responses were deficient, and after multiple attempts to meet-and-confer successfully, the plaintiff filed a motion to compel further responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents. (Declaration of Woods, p. 5). Plaintiff notes that on November 7, 2023, the court granted the plaintiff’s motion to compel discovery. Plaintiff asserts that the defense engaged in delay, obstruction, and incoherent discovery, such as unilaterally serving a notice of deposition of the plaintiff and request for production of documents, which the plaintiff’s counsel opposed (Plaintiff’s Motion, p. 4); and filing a motion to compel the deposition of the defendant’s Person Most Knowledgeable (“PMK”) on January 27, 2025. Plaintiff engaged in deposition of percipient witnesses in litigating this matter. (*Id.*, at p. 11). Even after parties reached a settlement agreement on March 31, 2025, plaintiff’s counsel avers that the defense would not resolve the attorney’s fees and cost motion, which resulted in this motion. (*Id.*). Plaintiff’s counsel asserts that due to defense’s strategy and delay, the plaintiff had to incur extra costs and fees in seeking motions. (*Id.*, at p. 4).

Defendant GM opposes the motion as grossly untimely. Defendant emphasizes that the plaintiff accepted the 998 offer and filed this motion for attorney’s fees 228 days after the notice of settlement. (Declaration of Keshishian, ¶14). Based on the delay, the defendant seeks a denial of attorney’s fees. (Opposition, at p. 5). Defense argues that it extended an offer to resolve the plaintiff’s attorney’s fees and costs for \$20,000.00, but believes that a reasonable award of fees and cost in this matter amounts to \$18,983.30. (*Id.*).

A. ATTORNEY’S FEES

Plaintiff asserts that the settlement offer obtained required the diligent work of plaintiff’s counsel, that included research; drafting a complaint; reviewing defendant’s answer; propounding discovery; responding to written discovery; filing motions to compel further responses to initial discovery; filing a motion to compel deposition and request for production of documents; opposing improper deposition notices; etc. Plaintiff asserts its vigorous efforts were reasonably and necessary given Defendant’s refusal to repurchase the Subject Vehicle prior to litigation; denial of liability; the defendant’s decision to extensively litigate this case before offering a reasonable settlement offer;

and the defendant's refusal to resolved attorney's fees, cost, and expenses absent motion practice. (Plaintiff's Motion, p. 15; Wood Decl. ¶¶ 3-45).

Plaintiff sets forth the attorney's fees as follows: "...Erik Whitman, during the relevant time period, are: \$475.00 per hour from February 2023 to December 2023, and \$490.00 per hour from January 2024 until his departure in February of 2024. Wood Decl. ¶ 46. The hourly rates for the subsequent handling attorney, Lara Rogers, during the relevant time period, are: \$350.00 per hour from February 2024 to June 2024, \$415.00 per hour from July 2024 through January 2025, and \$430.00 per hour since February 3, 2025. Id. ¶ 47. The hourly rates for the supervising attorney and senior partner, Carey B. Wood, are: \$500.00 per hour from August 2022 to January 3, 2024, \$520.00 per hour from January 4, 2024 to July 9, 2024, \$525.00 per hour from July 10, 2024 to February 2, 2025, and \$540.00 per hour since February 3, 2025. Id. ¶ 48. The hourly rate for managing partner Jessica Anvar for her work, in December 2022, at the inception of this matter was \$525.00 per hour, and \$575.00 per hour in July of 2025. Id. ¶ 49. The hourly rates for the handling attorney, Bobby C. Walker, during the relevant time period, are: \$430.00 per hour since February 3, 2025. Id. ¶ 50. These rates are appropriate given each attorney's relative experience and qualifications. Wood Decl. ¶¶ 46-50." (Plaintiff's Motion, p. 14). Plaintiff asserts that it has received these attorney's' fees in similar cases.

The hourly rates for the paralegals: Destiny Olvera, Robert Aguilar, Jasmine Ochoa, Virginia Walls, Araceli Alatorre, Isabella Garcia, and Cesar Utuy performed paralegal work on this matter, billing at the rate of \$200.00-\$215.00 per hour. that worked on the case are \$200.00-\$215.00, (*Id.*; Declaration of Wood, ¶ 51). Paralegal fees are generally recoverable as attorney fees. (*Guinn v. Dotson*, (1994) 23 Cal.App.4th 262, 268; *Sundance v. Municipal Court* (1987) 192 Cal.App.3d 274)).

Defense avers that the amount of fees and multiplier requested by the plaintiff is "absurd" and unreasonable given the routine nature of this lemon law case. GM asserts that plaintiff's counsel managed to bill grossly excessive amounts for preparing basic template-based discovery, correspondence, and pleadings. Defense argues that the plaintiff has exploited use of these boilerplate templates from case to case and that the hours are "bloated." (Opposition., at p. 5-10). Defendant argues that plaintiff's counsel relied almost exclusively on templates and thus fees are excessive and unreasonable. (*Id.*, at p. 13). Defense avers that the plaintiff may have opted to use a legal secretary or paralegal in drafting the form templates to reduce costs. (*Id.*). Defendant identifies the boilerplate templates in its opposition, including pre litigation work, template discovery, template meet and confer correspondence, motions to compel, templated fee motion, and seeks a reduction of 49.7 hours or \$17,603.20 in fees. (*Id.*, at p. 9-15). Defendant also contends that time billed for paralegals Walls (10.5 hours (\$2,205.00)) and Olivera (9.6 hours (\$2,064.00)) constitute clerical blocked billing such as serving, receiving, saving, scheduling, and calendaring work, that constitute block billing and non-legal work. (*Id.*, at p. 13-14). Accordingly, the defense seeks a 16 hour reduction (\$3,415.20) of clerical or duplicative work performed by attorneys. (*Id.*).

Defense seeks the following reductions:

TASK REDUCTION IN HOURS IN FEES

Templated Discovery Requests 1.6 \$760.00

Templated Meet and Confer 2.5 \$1,187.50

Templated Motion to Compel Further 15.1 \$7,172.50

Discovery Responses

Motion to Compel Deposition and Ex Parte 4.7 \$1,415.00

Templated Discovery Responses 1.5 \$712.50

Templated Motions in limine 2.1 \$903.00

Template Fee Motion 2.9 \$1,280.00

Pre-Litigation Work 3.3 \$757.50
Paralegal Clerical Time and Block-Billed Time 16.0 \$3,415.20
TOTAL 49.7 \$17

(Opposition, p. 16). Defense also argues that the plaintiff is not entitled to the \$4,000.00 it seeks in “anticipated fees.” (*Id.*).

In Reply, the plaintiff argues that its motion is timely and notes that Plaintiff filed a notice of conditional settlement on March 21, 2025. This notice indicated that a request for dismissal would be filed no later than July 18, 2025. (Reply, p. 2-3). The dismissal hearing is currently set for August 13, 2026. (*Id.*). Plaintiff rejects the defendant’s argument that its hours are inflated based on the extent of discovery issues and contends that while it uses templates, the research and review is tailored to each case. (*Id.*). Further, the plaintiff points that the motion to compel in this matter were reasonable and necessary in order to obtain further responses and deposition of PMQ. (*Id.*, at p. 5-6). Plaintiff also points to the fact that it had to prepare motions in limine in this matter, which are unique to each case. (*Id.*). Plaintiff asserts that the attorney’s fees are recoverable as the plaintiff has laid out the years of experience of each attorney that worked on this matter and is commensurate with the experience as well as argues that the paralegal time expended is warranted and recoverable. (*Id.*, at p. 8-9).

The Court GRANTS attorney’s fees in the amount of \$23,5780.03

B. COST

Plaintiff’s motion did not address any costs and the opposition also did not address costs. The Court notes that on June 24, 2025, the plaintiff submitted a 49-page Memorandum of Costs for \$3,689.97 that comprised of filing and motion fees, deposition costs, and service of process fees. The motion included Exhibits and a proof of service to defense counsel that same day indicating electronic service. The Memorandum of Costs is unopposed and no motion to tax was filed.

The Court GRANTS costs in the amount of \$3,689.97.

C. MULTIPLIER

Plaintiff asserts that a 1.50 multiplier is warranted based on the following: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff(s); and (4) the skill exhibited by counsel. (Plaintiff’s Motion, p. 16). Plaintiff counsel asserts that it reached an excellent outcome, including full restitution and civil penalty for the Subject Vehicle due to its vigorous litigation. (*Id.*, at p. 17). Plaintiff’s counsel accepted representation on a contingency basis and failure would have resulted in no recovery for the plaintiff and its counsel. Plaintiff avers that the defense engaged in aggressive and stonewalling litigation tactics. (*Id.*). Plaintiff asserts that the issues involved in this litigation were complex due to the plaintiff’s repair history and types of malfunctions at hand. (*Id.*, at p. 18). Plaintiff’s counsel assert that it demonstrated skill, e.g. knowing about the brake defect and demonstrating a diplomatic approach to the PMK depositions. (*Id.*).

Defendant argues that any enhancement in this matter is “completely unjustified.” (Opposition, p. 14). Defendant asserts that the plaintiff has failed to demonstrate the elements to support awarding a multiplier. Defense argues that a substantial amount of work in Song-Beverly cases are virtually identical from case to case and settlements are reached withing the statutory remedies. (Declaration of Keshishian, ¶¶ 16-17). Defense avers that the plaintiff’s counsel has dozens, if not hundreds of active Song-Beverly cases against GM and other manufactures, and the work and outcome in this case is not novel, difficult, or superlative. The high volume of Song-Beverly cases also reduces

any risk of taking the matter on a contingency basis, which is the nature of the work. (*Id.*, at p. 15). Allowing a multiplier would result in duplicate recovery.

In reply, plaintiff's counsel asserts that it went up against a large corporate defendant that weilded its vast resources, which required tenacious meet and confer and diligent motions practice by the attorney. The plaintiff thus argues that the factors are met and a multiplier is warranted. (Reply, p. 9).

Based on the straightforward nature of the case, lack of demonstration of unique work pointing to a novel or difficult issue, type of case handled by plaintiff's counsel's firm Consumer Law Experts, P.C in the Song-Beverly matter, and resolution via 998 offer by the parties, the Court does not find that the plaintiff has demonstrated that a multiplier is warranted in this matter. The Court DENIES Plaintiff's request for a multiplier.

D. ESTIMATED COSTS

Plaintiff requested \$4,000.00 for anticipated time spent on preparing and submitting a reply brief and appearing for Court. Plaintiff also asserts to having spent five hours reviewing the opposition and drafting a reply for a total expense of \$2,700.00 and expends to spend another two to three hours appearing in court with estimated costs of \$1,080.00 - \$1,620.00. (Reply, at p. 2).

The defendant's oppose awarding any anticipated fees for similar reasons to other fees and costs noted above.

The Court DENIES the requested \$4,00.00 of anticipated time, but GRANTS one hour of attorney's fees for preparation and filing a reply brief at the requested attorney's rate of \$540.00.

I. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of \$24,320.03 that consists of \$23,5780.03. in attorney's fees and \$540.00 in reply brief preparing and filing.

The unopposed memorandum of costs is GRANTED in the amount of \$3,689.97.

The request for a 1.50 enhancer by the plaintiff is DENIED.

The Court will prepare the formal Order.

Calendar Lines # 3-4
Case Name Joey Mowry vs Daljeet Sagoo
Case No. 25CV457823
Motion to Compel Responses to Form Interrogatories (Line # 3); Motion to Compel Responses to Special Interrogatories (Line #4); and Sanctions
I. <u>BACKGROUND</u>
A. BRIEF FACTUAL BACKGROUND
This case stems from a February 3, 2025 Complaint filed by Plaintiff Joey Mowry ("Mowry") alleging medical malpractice against Defendant Daljeet Sagoo, M.D. ("Sagoo"). (Complaint). On May 19, 2025, Defendant Sagoo filed a demurrer to the plaintiff's complaint and motion to strike portions of the Complaint for punitive damages. The demurrer and motion were unopposed and came for hearing on February 5, 2026, which the court sustained the demurrer with ten days leave to amend and granted the motion to strike.